

INDEPENDENT CONTRACTOR AGREEMENT

SALES REPRESENTATIVE

Basic Information

Name:

Mailing Address:

Cell Phone #:

Email:

Emergency Contact Name and Information:

Required Items

Signed Contract []

Copy of Driver's License []

ID Badge and Picture []

Voided Check []

W-9 []

This Independent Contractor Agreement (the "Agreement") is entered into effective as of _____ (the "Effective Date") by and between **JD Marketing LLC DBA Kilo Energy** (the "Company"), a limited liability company organized under the laws of the State of Utah with a principal place of business at 723 North 540 East, Mapleton, UT 84664, and _____ (the "Contractor"). Company and Contractor are each a "Party" and together the "Parties." ***[REVIEW: Confirm Effective Date convention — counterparts execution date vs. specific calendar date.]***

Background.

Company markets and sells residential solar, battery storage, and related energy products through a network of authorized installation partners. Company engages independent sales contractors to identify Customers, present Company-approved offerings, and submit deals through Company's commission application. Company does not itself perform installation; the assigned installer holds the homeowner contract and performs the installation work.

Contractor wishes to provide sales services to Company on a non-exclusive, independent-contractor basis on the terms set forth in this Agreement. ***[REVIEW: Background paragraph is new — replaces the original template assumption that Company is the installer; this aligns with how JD actually operates (multi-installer, JD does not install).]***

A. Definitions. The following capitalized terms have the following meanings in this Agreement:

"Agreement" means this Independent Contractor Agreement, including its exhibits, as amended from time to time.

"Area" or "Sales Area" means the geographic area in which Company has authorized Contractor to perform the Services, as Company may designate or modify in writing from time to time.

"Commission Application" means Company's internal web application (currently at app.kiloenergies.com) where deals are submitted, milestones are tracked, the Pay Scale is published, and rep-visible commission amounts are computed and recorded.

"Confidential Information" means all non-public information of Company, whether written, oral, electronic, or visual, including without limitation: business plans, pricing (including per-installer wholesale or "redline" pricing), customer and lead lists, customer contracts, customer-provided information, financial data, marketing strategies, the Commission Application and its data, software, processes, methods, designs, Trade Secrets, and any information identified as confidential or that a reasonable person would understand to be confidential. Confidential Information does not include information that (a) is or becomes publicly known through no fault of Contractor; (b) was lawfully in Contractor's possession prior to disclosure by Company without confidentiality obligation; or (c) is independently developed by Contractor without use of Confidential Information.

"Customer" means any person or entity who has signed, or is being solicited to sign, a Customer Contract, including any lead provided by Company or developed by Contractor while engaged under this Agreement.

"Customer Contract" means an installer's residential solar, battery storage, or energy-product purchase, lease, loan, or power purchase agreement signed by a Customer in connection with a deal submitted by Contractor through the Commission Application.

"Deal" means a single Customer Contract submitted by Contractor through the Commission Application and accepted by Company.

"Good Standing" means a Customer Contract for which (i) all paperwork is approved, (ii) the design is completed, (iii) any change orders have been resolved, and (iv) there are no outstanding unresolved issues with the Customer or the assigned installer.

"Installer" means a third-party installation partner Company has engaged to fulfill Customer Contracts. Company may add, remove, or change Installers in its discretion.

"Intellectual Property" means all patents, copyrights, trademarks, trade secrets, know-how, software, and other proprietary rights owned or developed by Company or its affiliates.

"Pay Scale" means the per-Installer schedule of closer baseline rates (\$/W), setter baseline rates (\$/W), milestone allocations, and related compensation rules published in the Commission Application. The Pay Scale in effect on a Deal's sold date is snapshotted to that Deal and governs Contractor's compensation on it. Company may revise the Pay Scale

prospectively at any time; revisions apply only to Deals sold on or after the revision's effective date.

"PTO" means "permission to operate" granted by the applicable utility, allowing the installed system to be activated. PTO timing is controlled by the utility and the Installer, not Company.

"Sales Term" means the period beginning on the Effective Date and continuing until terminated under this Agreement.

"Services" means the sales, lead-generation, intake, and Customer-care services Contractor performs for Company under this Agreement.

"Trade Secrets" means information that derives independent economic value from not being generally known and is the subject of reasonable efforts by Company to maintain its secrecy.

B. Conditions Precedent, Appointment and Term.

B.1 Conditions Precedent. Neither this Agreement nor any obligation of Company shall be effective until each of the following has been satisfied by Contractor: (i) Company has approved the Sales Area in which Contractor will perform the Services; (ii) Contractor has provided evidence of all licenses, registrations, permits, and approvals required by any federal, state, or local authority for Contractor to perform the Services in the Sales Area, including without limitation Home Improvement Salesperson registration with the California Contractors State License Board ("CSLB HIS") if Contractor will solicit residential customers in California, and any analogous registration in any other state; (iii) Contractor has provided all documentation reasonably requested by Company; (iv) each representation and warranty of Contractor in this Agreement is true and correct; (v) Contractor has executed this Agreement; (vi) Contractor has executed an authorization for a background check; (vii) Company has received a background check satisfactory to Company; and (viii) Contractor has executed a current IRS Form W-9. Any compensation owed to Contractor is contingent on prior satisfaction of each Condition Precedent.

B.2 Appointment. Subject to compliance with the Conditions Precedent and the other terms of this Agreement, Company engages Contractor as a non-exclusive independent-contractor sales representative to market and sell solar, battery storage, and related energy products on behalf of Company in the Area.

B.3 Term. The Sales Term begins on the Effective Date and continues until terminated under Section 13. Either Party may terminate as provided in Section 13.

B.4 Representations and Acknowledgements. By executing this Agreement, Contractor represents and warrants that: (a) all Conditions Precedent have been satisfied; (b) Contractor has not been convicted of a felony or any misdemeanor crime of moral turpitude; (c) Contractor has provided truthful responses to all questions and information requested by Company; and (d) Contractor has the experience, qualifications, and capacity to perform the Services as an independent contractor.

Engagement; Services and Work Orders.

1. Company engages Contractor to identify prospective Customers, present Company-approved solar, battery storage, and related energy product offerings, complete intake documentation through the Commission Application, and provide post-sale Customer support as reasonably requested. Contractor will become familiar with the Customer Contract forms used by each authorized Installer and will deliver the Services consistent with Exhibit B (White Glove Service Standards — Code of Conduct) and applicable law.
2. Multi-Installer Engagement. Company markets and sells through a network of Installers. Contractor may be authorized by Company to sell on behalf of one or more Installers. Each Installer's pricing, payment timing (including the percentage of milestone payments due at install versus PTO), required intake fields, and chargeback policy are set in the Commission Application and may be updated by Company from time to time. The Installer (not Company) holds the Customer Contract and performs the installation; Contractor will not represent otherwise to any Customer.
3. Customer Information Handoff. On submission of each Deal, Company will share Customer-provided information (which may include the Customer's name, address, phone number, email address, utility-bill image, intake responses, and project notes) with the assigned Installer for project execution. Contractor warrants that, before submitting any Deal, Contractor will advise the Customer that the Customer's information will be shared with the assigned Installer and will obtain the Customer's consent to that sharing. *[REVIEW: PII handoff consent — confirm with privacy counsel that this matches the Customer-facing intake disclosures; consider per-state addendum (CA CCPA, etc.).]*
4. Work Orders. From time to time Company may issue work orders, blitz assignments, lead packages, or other written or electronic engagements (each a "Work Order") describing specific Customers, areas to canvass, or campaigns. Each Work Order is incorporated into and governed by this Agreement; in the event of conflict the Agreement controls except where the Work Order expressly states otherwise. Contractor may accept or decline any Work Order in Contractor's sole discretion. *[REVIEW: Removed the original 2-hour acceptance window — its rigidity was an IC-classification risk factor under Borello/ABC. Contractor now has full discretion to accept or decline.]*
5. No Promise of Volume. This Agreement is not a guarantee that Company will issue any Work Order or that Contractor will receive any minimum lead volume, deal volume, or compensation. The relationship is non-exclusive and Company may engage other contractors, some of whom may compete with Contractor.

Customer Care and Compliance.

1. Contractor will comply with all applicable laws, including without limitation OSHA, immigration (U.S. Form I-9 obligations applicable to Contractor's own personnel), federal and state consumer protection law, the Telephone Consumer Protection Act, the FTC Act, applicable do-not-call and door-to-door solicitation rules, the California Solar Energy Systems Act and Home Improvement Salesperson rules where applicable, and the licensing and registration laws of every state in which Contractor solicits Customers.
2. Contractor will take reasonable care not to damage Customer property and will abide by the White Glove Service Standards in Exhibit B.

Compensation; Chargebacks; Offset.

1. Pay Scale. Contractor's compensation on each Deal is determined by the Pay Scale in effect on that Deal's sold date and the role assigned to Contractor on that Deal (closer or setter), as recorded in the Commission Application. The Pay Scale and its mechanics are described in Exhibit A. Company may revise the Pay Scale prospectively at any time by publishing the revised Pay Scale in the Commission Application; Deals sold on or after the revision's effective date will use the revised Pay Scale, and Deals sold before that date will continue to use the prior Pay Scale to which they were snapshotted.
2. Milestone Structure. Compensation on each eligible Deal is paid in up to three milestones (M1, M2, M3) as follows:
 - Milestone One ("M1") — A flat advance against Contractor's total commission on the Deal, in an amount determined by the Pay Scale (\$1,000 if system size is 5 kW or greater; \$500 if less than 5 kW, as of the Effective Date). M1 is earned upon advancement to the "Acceptance" phase per Company's then-current project pipeline policy as reflected in the Commission Application. On a paired Deal (closer plus setter), M1 is paid 100% to the setter; the closer's first milestone payment on a paired Deal is M2. On a self-generated Deal (closer with no setter), M1 is paid to the closer.
 - Milestone Two ("M2") — Payable on the next regular pay cycle following the later of (a) advancement to the "Installed" phase in the Commission Application and (b) Company's receipt of the corresponding installer funding for the Deal. M2 is the percentage of the closer's and setter's remaining commission (after M1) corresponding to the assigned Installer's install-pay percentage, as set in the Commission Application.
 - Milestone Three ("M3") — Where the assigned Installer's install-pay percentage is less than 100%, the remainder is paid as M3 upon advancement to the "PTO" phase. Where the install-pay percentage is 100%, no M3 is owed on that Deal.
3. Server-Authoritative Math. The commission amounts displayed for each Deal in the Commission Application are computed by Company's server and are the authoritative amounts owed to Contractor on that Deal. Any inconsistent calculation prepared by Contractor or any third party is not binding on Company. The Commission Application's

audit log is the record of truth for Deal state, milestone transitions, and commission amounts and may be relied upon by either Party in any pay dispute.

4. Phase-Transition Payment; No Time-Based SLA. Milestone payments are triggered by phase transitions in the Commission Application, not by elapsed time from sold date. Contractor acknowledges that the timing of each phase transition depends on Customer, Installer, lender, utility, and other third-party performance, and that Company makes no representation regarding how quickly any Deal will reach Acceptance, Installed, or PTO. Company's only payment obligation is to pay the milestone on the next regular pay cycle following the qualifying phase transition (and, for M2, Company's receipt of installer funds).
5. Phase Rollback. Company may, in its reasonable discretion, reverse a Deal's phase in the Commission Application (for example, returning a Deal from "Installed" to "Permitting" if material design or paperwork issues are discovered). Draft or pending milestone amounts associated with the reversed phase will be voided. Already-paid milestones are not affected by phase rollback alone, but remain subject to chargeback under the next paragraph.
6. Pass-Through Chargebacks. Compensation paid to Contractor on a Deal is contingent on the Deal remaining in Good Standing through PTO and on Company retaining the corresponding installer payment. If a Customer Contract is cancelled, rescinded, voided, or otherwise unwinds, or if the Installer or any lender claws back, withholds, or reduces a payment to Company in respect of the Deal, Contractor will repay or forfeit a corresponding amount of compensation as follows: (a) any draft or pending milestone is voided; (b) for each milestone already paid to Contractor, a chargeback equal to the paid amount will be recorded in the Commission Application against Contractor; (c) Company may offset such chargeback against any current or future amounts owed to Contractor under this Agreement or any other agreement; and (d) if Contractor has no current or future amounts owed at the time of chargeback, Company may invoice Contractor directly for the chargeback amount, payable within thirty (30) days. Chargeback exposure is pure pass-through: Contractor bears the same recovery risk on each Deal that Company bears against the Installer. *[REVIEW: Pass-through chargeback survives termination — see Survival paragraph below. Counsel should confirm direct-invoice right is enforceable post-termination in Utah and in any other state where Contractor resides.]*
7. Survival; Post-Termination Chargebacks. The chargeback, offset, and direct-invoice rights described in this Section 3 survive termination or expiration of this Agreement for so long as any Deal in which Contractor participated remains subject to potential chargeback under any applicable Customer Contract, Installer agreement, or lender agreement. Contractor remains obligated to repay any chargeback assessed after termination.
8. Offset. Company may at any time offset any amount owing from Contractor to Company (including chargebacks, the missed-appointment penalty below, lost or unreturned

Company property, and any other liquidated amount under this Agreement) against any amount owed to Contractor by Company.

9. **Trainer Override.** If Contractor is enrolled in a Trainer Assignment as either a trainer or trainee, a separate Trainer Addendum signed at the time of assignment will govern the per-watt override and its effect on the parties' commission split. Absent a signed Trainer Addendum, no trainer override applies to Contractor's Deals.
10. **Missed-Appointment Penalty.** If Contractor misses a scheduled Customer appointment, a \$50 penalty will be assessed and may be offset against Contractor's pay. To confirm attendance, Contractor must either (i) check in to the appointment through the Commission Application or (ii) timely provide a photograph showing the residence's front door with the address visible.
11. **Reimbursements.** Contractor is responsible for Contractor's own business expenses and will not be reimbursed for any expense absent prior written approval by Company. Reimbursement requests, where pre-approved, must be submitted through the in-app reimbursement workflow with supporting receipts; payment of approved reimbursements will follow Company's standard reimbursement cycle.
12. **Taxes.** Contractor is responsible for all federal, state, and local income, self-employment, and other taxes payable on amounts received under this Agreement. Company will issue an annual IRS Form 1099-NEC (or successor form) to Contractor reporting amounts paid. If applicable, Contractor is responsible for any sales or use taxes related to the underlying Customer Contracts.
13. **Changes to Compensation.** Subject to the prospective-only rule for Pay Scale revisions, Company may amend the compensation provisions of this Agreement on at least five (5) days' prior written notice to Contractor; continued performance after the effective date of the change constitutes acceptance. *[REVIEW: Five-day modification window is carried over from the original template; counsel should consider whether unilateral modification with continued-performance acceptance is enforceable in all states.]*

Confidentiality.

1. Contractor will hold all Confidential Information in strict confidence and will not disclose, copy, publish, or use any Confidential Information except as necessary to perform the Services. Contractor will use at least the same degree of care that Contractor uses to protect Contractor's own confidential information, and in no event less than reasonable care.
2. **Customer Information.** Customer-provided information (including names, contact information, utility data, financial information used for credit checks, and intake details) is Confidential Information and is also subject to applicable consumer-privacy laws. Contractor will not retain, share, or use Customer information for any purpose other than executing the Services for Company, will not transmit Customer information through

unapproved channels (including personal email, personal cloud storage, or unsanctioned messaging tools), and will promptly notify Company of any actual or suspected unauthorized access, use, or disclosure of Customer information. *[REVIEW: Confirm consistency with any GLBA, CCPA/CPRA, and state breach-notification obligations.]*

3. Equitable Relief. Contractor acknowledges that money damages are not a sufficient remedy for breach of this Section and agrees that Company is entitled to injunctive and other equitable relief without need to post bond, in addition to any other remedy.
4. Survival. This Section survives termination of the Agreement. Confidentiality obligations continue for three (3) years after termination; Trade Secrets remain protected for so long as they qualify as such under applicable law. Upon termination or on Company's request, Contractor will return or destroy all Confidential Information and certify destruction in writing.

Inspections and Records.

Contractor will maintain a sales-process control system reasonably acceptable to Company. Records of Contractor's work, including intake forms, Customer correspondence, and Deal documentation, will be made available to Company on reasonable request during the Sales Term and for three (3) years thereafter. Submission and storage of Deal records through the Commission Application satisfies this Section.

Warranties.

Confidential Information and the Commission Application are provided on an "AS IS" basis. COMPANY MAKES NO WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF NON-INFRINGEMENT, MERCHANTABILITY, OR FITNESS FOR A PARTICULAR PURPOSE. Company is not liable for damages arising out of Contractor's use of Confidential Information or the Commission Application.

Indemnification and Insurance.

1. Indemnification by Contractor. Except to the extent caused by Company's gross negligence or willful misconduct, Contractor will defend, indemnify, and hold harmless Company, its directors, officers, employees, agents, successors, assigns, and Customers against any and all claims, demands, losses, judgments, damages, costs (including reasonable attorneys' fees), fines, penalties, and liabilities arising out of or in connection with: (a) any act or omission of Contractor or Contractor's personnel; (b) any breach of this Agreement by Contractor; (c) Contractor's misclassification of, or failure to pay or report taxes on behalf of, any of Contractor's personnel; (d) any false, misleading, or unauthorized

statement by Contractor to a Customer; or (e) any violation of consumer-protection law by Contractor.

2. Mutual IP Indemnification. Each Party will defend, indemnify, and hold harmless the other against any third-party claim that the indemnifying Party's materials or processes provided under this Agreement infringe a third party's patent, copyright, trademark, or trade-secret rights.
3. Insurance. During the Sales Term, Contractor will maintain at Contractor's own cost (i) statutory Workers' Compensation and Employer's Liability insurance covering Contractor's personnel; (ii) Commercial General Liability insurance with limits of at least \$1,000,000 per occurrence and \$2,000,000 aggregate, naming Company as additional insured; and (iii) Business Automobile Liability insurance covering all vehicles used in connection with the Services with a minimum limit of \$1,000,000 per accident, naming Company as additional insured. Insurance must be primary and non-contributory as to Company; carriers must give Company at least sixty (60) days' prior written notice of cancellation, termination, or material change. Contractor will furnish certificates of insurance and endorsements on request. All policies will contain a waiver of subrogation in favor of Company. *[REVIEW: Counsel and Contractor's broker should confirm appropriateness for each state of operation. Some 1099 solar reps push back on Workers' Comp where they have no employees — consider sole-proprietor exemption language if applicable.]*

Limitation of Liability.

EXCEPT AS REQUIRED BY APPLICABLE LAW, COMPANY WILL NOT BE LIABLE TO CONTRACTOR OR ANY THIRD PARTY FOR ANY INDIRECT, SPECIAL, CONSEQUENTIAL, INCIDENTAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS OR ANTICIPATED COMMISSIONS, ARISING OUT OF OR RELATING TO THIS AGREEMENT, EVEN IF COMPANY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. COMPANY'S TOTAL CUMULATIVE LIABILITY UNDER THIS AGREEMENT WILL NOT EXCEED THE AMOUNTS PAID OR PAYABLE TO CONTRACTOR ON THE SPECIFIC DEAL GIVING RISE TO THE CLAIM.

Compliance; Drug-Free Workplace; Background Check.

1. General Compliance. Contractor will comply with all applicable laws and lawful orders applicable to the Services.
2. Drug-Free Workplace. As a condition precedent to engagement, Contractor will not be under the influence of, manufacture, distribute, dispense, possess, or use illegal drugs or unlawful controlled substances while performing the Services or while on Company or Customer premises. A material violation of this Section is grounds for immediate

termination of this Agreement. *[REVIEW: Tightened to "precondition" framing per IC-classification concerns. Original template included broad ongoing reasonable-suspicion testing rights, which read more like an employment policy.]*

3. Background Check. Contractor authorizes Company or its agents to conduct a background check as a Condition Precedent and consents to the related release authorization. Failure to cooperate is grounds for termination.

Conflict of Interest and Communications.

1. Contractor represents that Contractor has no contract, arrangement, or interest that would create a material conflict with Contractor's obligations under this Agreement, and will not enter into any such arrangement during the Sales Term.
2. Contractor will not (a) make any false, misleading, or disparaging statement about Company, its Installers, its other contractors, or its officers, directors, members, or affiliates to Customers, prospective Customers, competitors, or any other person, except for truthful testimony under lawful subpoena or court order (in which case Contractor will give Company prompt notice if legally permitted); (b) solicit any Customer to perform Services for any competing company; or (c) submit a bid or proposal for any solar, battery, or energy-product installation for any third-party entity that is not Company. For each material breach of this Section, Contractor will pay Company \$1,000 as liquidated damages, the Parties acknowledging that actual damages would be difficult to determine.

Cooperative Sales; Trademark License.

1. Contractor Leads. Contractor may, at Contractor's discretion, refer leads to Company. If Company successfully closes such a referral as a Customer, Company may compensate Contractor for the referral on terms agreed in a separate signed writing.
2. Trademark License. Subject to Company's reasonable usage guidelines, Company grants Contractor a non-exclusive, non-transferable, revocable license during the Sales Term to use and display Company's names and trademarks (the "Company Marks") solely as necessary to perform the Services. The license terminates automatically on expiration or termination of this Agreement.

Intellectual Property.

All leads, Customer information, designs, systems, know-how, intake forms, and other information generated or accessed in the course of the Services, and all data in the Commission Application, are and will remain the property of Company. Any improvements, suggestions, or work product Contractor creates in the course of the Services that relate to Company's business are assigned to

Company on creation. Contractor will execute any documents reasonably necessary to perfect Company's ownership.

Expiration and Termination.

1. Termination for Convenience. Either Party may terminate this Agreement for convenience by giving the other Party at least seven (7) days' written notice.
2. Termination for Cause. Either Party may terminate this Agreement immediately on written notice if the other Party materially breaches this Agreement (including the Confidentiality, Compliance, Conflict of Interest, or Non-Solicitation sections) and fails to cure (if cure is possible) within seven (7) days of written notice of the breach. Company may also terminate immediately on written notice for fraud, gross misconduct, or any conduct that exposes Company or any Customer to material harm.
3. Mutual Termination. The Parties may terminate this Agreement at any time by mutual written agreement.
4. Pipeline Disposition. On termination for any reason other than fraud or material uncured breach by Contractor: (a) Deals already in Good Standing as of the termination date will continue to pay through their normal milestones, subject to the chargeback provisions of Section 3; (b) Deals not yet in Good Standing as of the termination date may, in Company's discretion, either continue to pay through their normal milestones or be reassigned to another contractor with no further compensation owed to Contractor; and (c) M1 advances already paid on Deals that subsequently cancel remain subject to chargeback. On termination for fraud or material uncured breach by Contractor, Company may withhold pending payment on any Deal pending investigation and may, in its discretion, deem all unpaid milestones forfeited to the extent permitted by applicable law. *[REVIEW: Pipeline disposition softened so reps don't forfeit earned milestones on a clean rep-initiated termination — reduces the IC-classification risk that arises when a 1099 contractor is penalized for "quitting." Counsel should confirm forfeiture-on-fraud language is enforceable in any state where Contractor resides.]*
5. Return of Materials. Within seven (7) days after termination, Contractor will return to Company all Customer files, Confidential Information, Company property, ID badge, and any equipment supplied by Company; and will permanently delete any copies of Confidential Information held outside the Commission Application.
6. No Liability for Termination. Neither Party will be liable to the other for damages on account of termination, including loss of prospective revenues or recovery of expenses incurred in anticipation of future business. This does not limit Contractor's right to compensation already earned under the Pipeline Disposition paragraph above.

Non-Solicitation.

1. Customers. During the Sales Term and for twelve (12) months thereafter, Contractor will not, directly or indirectly, solicit any Customer to whom Contractor was introduced by Company or whom Contractor worked or pitched on behalf of Company, for the purpose of providing solar, battery storage, or energy-product sales or services that compete with Company's business.
2. Personnel. During the Sales Term and for twelve (12) months thereafter, Contractor will not, directly or indirectly, solicit, hire, or engage any then-current employee or independent contractor of Company.
3. No Non-Compete. For the avoidance of doubt, this Agreement does not restrict Contractor from selling solar, battery storage, or energy products generally for any non-Customer or for any other principal, subject only to the non-solicitation obligations above and the confidentiality obligations in Section 4. *[REVIEW: Tightened to 12 months and dropped the broader vendor/subcontractor reach. Explicit "no non-compete" carve-out aligns with California Business & Professions Code §16600 and the FTC's evolving non-compete posture.]*

Relationship of the Parties; Assignment.

1. Independent Contractor. Contractor is an independent contractor. Contractor is not an employee, agent, partner, or joint venturer of Company and is not eligible for any Company employee benefits. Contractor is solely responsible for the manner and means of performing the Services, including hours of work, methods, equipment, and personnel decisions. Company's direction is limited to the results of the Services and the standards in Exhibit B; the day-to-day execution is Contractor's.
2. Taxes; Benefits. Company will not withhold income, FICA, or other taxes from amounts paid to Contractor and will not contribute to social security, unemployment, workers' compensation, or other benefit programs on Contractor's behalf. Contractor is responsible for all such taxes and contributions.
3. No Authority. Contractor has no authority to bind Company, sign contracts on Company's behalf, or create any obligation in Company's name without prior written authorization.
4. Tools and Equipment. Contractor will provide, at Contractor's own expense, the tools, equipment, transportation, and supplies necessary to perform the Services, except for any equipment or branded materials Company elects in writing to provide. Company-supplied equipment must be returned on termination or on request; loss or damage may be offset under the Offset paragraph of Section 3.
5. Subcontracting. Contractor may not assign, delegate, or subcontract any obligation under this Agreement without Company's prior written consent. Company may assign this Agreement to any affiliate or successor in interest by way of merger, acquisition, or sale of all or substantially all of its assets.

6. California-Specific Notice. Where Contractor solicits Customers in California, the Parties acknowledge that California Labor Code §2775 and the California Supreme Court decisions in *Dynamex* and *Borello* set a heightened bar for independent-contractor classification. Contractor represents that Contractor (a) is engaged in an independently established trade, occupation, or business of the same nature as the Services; (b) is free from Company's control and direction in connection with performance of the Services, both under this Agreement and in fact; and (c) performs work outside the usual course of Company's business as a sales-and-marketing organization rather than an installer. Contractor further acknowledges responsibility for CSLB Home Improvement Salesperson registration prior to soliciting California residential customers and for compliance with the California Solar Energy Systems Act (including the homeowner three-day right of cancellation). *[REVIEW: Counsel should pressure-test the "outside the usual course" prong (Borello/ABC test "B"). JD's position is that JD is a sales/marketing organization and the installers are the ones in the construction/installation business; this framing should hold but warrants California labor counsel review.]*

Notice; Electronic Commerce; Choice of Law.

1. Notice. Notices must be in writing and delivered by registered mail, overnight courier, or personal delivery (signature required), or by email to the address each Party provides for that purpose.
2. Electronic Records and Signatures. The Parties consent to use of electronic records and electronic signatures and agree that electronic communications, click-through acceptances, and the audit log of the Commission Application are valid and binding records of the Parties' agreements and acts.
3. Governing Law and Venue. This Agreement is governed by and construed in accordance with the laws of the State of Utah, without regard to conflict-of-laws principles. Any action arising out of or related to this Agreement must be brought exclusively in the state or federal courts located in Utah County, Utah, and the Parties submit to the exclusive jurisdiction of those courts. THE PARTIES WAIVE ANY RIGHT TO TRIAL BY JURY. *[REVIEW: Choice of Utah law and Utah County venue is preserved from the original. In some states (notably California, Labor Code §925), choice-of-law and venue clauses against employees are voidable; analogous arguments have been raised against IC contracts. Counsel should confirm enforceability in California specifically.]*

General.

1. Entire Agreement. This Agreement (together with its exhibits, any signed Trainer Addendum, and any signed referral agreement) is the entire agreement of the Parties and supersedes all prior agreements and understandings on the subject matter.

2. Amendments. No amendment to this Agreement is effective unless in writing and signed by an authorized representative of each Party, except as expressly permitted by the Pay Scale and Changes-to-Compensation paragraphs of Section 3.
3. Severability. If any provision of this Agreement is held unenforceable, that provision will be limited or omitted to the minimum extent necessary, and the remaining provisions will remain in full force.
4. Counterparts; Execution. This Agreement may be executed in counterparts, including by electronic signature, each of which is an original and all of which together constitute one instrument.
5. Force Majeure. Neither Party is liable for any delay or failure to perform caused by an event beyond its reasonable control, including fire, flood, earthquake, storm, strike, riot, war, terrorism, pandemic, or governmental order.
6. Survival. The Compensation, Confidentiality, Inspections, Warranties, Indemnification, Limitation of Liability, Intellectual Property, post-termination Pipeline Disposition, Non-Solicitation, Independent Contractor, Notice, and General sections survive termination of this Agreement.
7. No Construction Against Drafter. The Parties acknowledge that this Agreement was negotiated and that no presumption applies favoring or disfavoring either Party as drafter.
8. Acknowledgement. Contractor has reviewed this Agreement, understands its provisions, has had the opportunity to consult independent counsel, and is entering into it freely and voluntarily.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

**JD MARKETING LLC DBA KILO CONTRACTOR
ENERGY**

By: _____

Name: _____

Title: _____

Date: _____

By: _____

Name: _____

Title (if entity): _____

Date: _____

EXHIBIT A — PAY SCALE

Reference. The current Pay Scale is published in the Company commission application (the "Commission Application") at app.kiloenergies.com under the Calculator and Settings sections. Each Deal is bound to the Pay Scale version in effect on that Deal's sold date.

Compensation Model — Plain English

Per-Installer Baselines. For each Installer Company has engaged, the Pay Scale sets a closer baseline (\$/W) and a setter baseline (\$/W) by kW band. The closer baseline is typically \$0.10 per watt below the setter baseline. The Installer's wholesale or "redline" rate is Company-confidential and is not disclosed to Contractor.

Closer Differential. On a paired Deal (closer plus setter), the closer earns a fixed differential equal to the spread between the closer baseline and the setter baseline, multiplied by system size in watts. This represents the closer's premium for closing.

Above-Split. Whatever the Customer is sold above the setter baseline (the "above-split") is divided 50/50 between closer and setter. On a self-generated Deal where there is no setter, the closer earns the entire amount above the closer baseline.

Trainer Override. If a Trainer Addendum is in effect for the closer or setter, the trainer's per-watt override is taken from the above-split portion (not added on top), as further described in the Trainer Addendum.

Milestone Mechanics

- M1 (advance) — A flat \$1,000 if system size is 5 kW or greater, or \$500 if less than 5 kW. M1 is paid on the next regular pay cycle following advancement to the "Acceptance" phase. On a paired Deal, M1 is paid 100% to the setter; on a self-generated Deal, M1 is paid to the closer. The M1 amount is netted off the rep's total commission on the Deal — it is an advance, not a bonus on top.
- M2 (install) — Paid on the next regular pay cycle following the later of (i) advancement to the "Installed" phase and (ii) Company's receipt of the corresponding installer funding. M2 is the installer-specific install-pay percentage of each rep's remaining commission after M1. Default install-pay percentage is 80%, with several Installers paying 100% at install and no M3.
- M3 (PTO) — Where the Installer's install-pay percentage is less than 100%, the remainder is paid as M3 on the next regular pay cycle following advancement to the "PTO" phase. Where install-pay percentage is 100%, no M3 is owed on that Deal.

Pay Cycle

M1 cutoff is Sunday at 11:59 PM Mountain Time, paid the following Friday. M2 cutoff is Saturday at 11:59 PM Mountain Time, paid the following Friday. M3 follows the same Saturday-cutoff

cadence. Payment is by ACH to the deposit account of record (a voided check or equivalent verification is required as a Condition Precedent).

Chargebacks and Offsets

See Section 3 of the Agreement. Chargebacks are recorded automatically in the Commission Application against the same milestones previously paid; they may be offset against current or future commissions or, if Contractor has no current or future commissions, invoiced directly. Chargeback exposure survives termination.

Note. This Exhibit A is descriptive of the compensation model. The authoritative dollar amounts, rates, kW bands, install-pay percentages, and any installer-specific exceptions are set in the Commission Application and may be revised by Company prospectively as provided in Section 3 of the Agreement. *[REVIEW: Replaced the original static \$/kW Self-Gen vs Lead-Gen line with this narrative — Self-Gen vs Lead-Gen is not how the actual compensation engine works (the differential is per-installer redline, not lead source).]*

EXHIBIT B — WHITE GLOVE SERVICE STANDARDS — CODE OF CONDUCT

Company has a long-standing policy that no individual associated with Company, including independent contractors, will make any false or misleading statement during a sales or marketing presentation or otherwise. Company expects and requires Contractor to work with the highest standard of honesty and integrity. Failure to comply with these White Glove Service Standards is grounds for termination of the Agreement.

[REVIEW: Reframed "disciplinary action" as "grounds for termination" per IC-classification softening. "Disciplinary action" reads like an employment term and was an avoidable misclassification flag.]

Customer Interaction Requirements

- Contractor will explain costs and timelines accurately and honestly, and will not lie, embellish, or promise outcomes that may not occur (including utility-bill savings, timeline-to-PTO, tax-credit eligibility, or interconnection outcomes).
- Contractor will conduct all aspects of business that touch Customers without unfair, deceptive, or abusive acts or practices.
- No advertising, sales, or marketing claim by Contractor will be deceptive or misleading, whether by affirmative statement, implication, or omission. All claims must be supported by factual, verifiable sources.
- Contractor will be familiar with applicable advertising laws and FTC guidance on advertising and marketing.
- Contractor will not refer to a system as "free" in oral or written marketing or sales discussions unless the Customer truly will not pay anything for the system or the energy it generates. Any other use of "free" must clearly disclose what is and is not included.
- Quoted prices must be accurate and complete, with optional or additional items clearly labeled, payment terms clearly stated, and the period of price validity specified.
- Where prices include incentives (such as utility or government programs) with eligibility requirements, Contractor will fully disclose those incentives and the eligibility requirements, or refer the Customer to qualified resources, subject to limitations on tax advice.
- Estimated prices must be reasonably based on information Contractor possesses and clearly labeled as estimates.
- Comparisons of pricing or terms must not be misleading and must include all facts material to the comparison.
- Performance projections (production estimates) must clearly identify any omitted material factors and the reason for omission.

- Utility electricity-price projections must be clearly identified, verifiable, and based on commercially reliable sources.
- Contractor will clearly and truthfully identify Company and the assigned Installer in every Customer interaction.
- Contractor will seek openness and transparency and will not exploit a Customer's lack of knowledge. If Contractor becomes aware that a Customer materially misunderstands a key aspect of a transaction or system fit, Contractor will correct the misunderstanding.
- Contractor will consider a Customer's capacity to understand contract terms and ramifications before entering into a contract with that Customer.
- Contractor will not misrepresent the reason for any contact with a Customer.
- Customer questions will be answered honestly. If Contractor does not know an answer, Contractor will say so, find and report on the answer within a reasonable period, or direct the Customer to someone who can answer.
- Contractor will not make statements that are false or without reasonable basis in fact, and will not omit material information when an omission would make a communication misleading.

Contractor Conduct Requirements

- Be courteous and considerate to Customers and neighbors.
- No smoking, vaping, chewing tobacco, or other tobacco/nicotine use, and no use of any drugs or alcohol on Customer premises.
- When entering a Customer residence, remove shoes or wear shoe coverings.
- Dress cleanly and professionally — Company-supplied branded shirt and hat where provided, clean pants and shoes in good condition without rips or holes.
- No cursing or disrespectful language. Contractor represents Company in every Customer interaction.